

deprivation of a constitutional right or a right secured by the laws of the United States; (2) that the city had an official policy, practice, or custom that amounted to deliberate indifference to that right; and (3) that the action taken pursuant to that policy, custom, or practice was the moving force behind and directly caused the constitutional violation and injury. *Casey N. v. County of Orange* (2022) 86 Cal. App. 5th 1158. “In order to state a cause of action under 42 United States Code sections 1983 or 1985(3), the pleader must show, in a specific and nonconclusory way, that the alleged acts deprived him of rights, privileges, or immunities secured by the federal Constitution and laws.” *Duffy v. City of Long Beach* (1988) 201 Cal.App.3d 1352, 1360.

Here, Plaintiff has made a bare recitation of “deprivation of property without due process and unreasonable seizures.” The SAC fails to state a claim pursuant to 42 USC § 1983. Plaintiff has not opposed the motion and there is no showing that there is a reasonable possibility the defect can be cured by amendment. Therefore, the demurrer to the fourth cause of action as to the City is **SUSTAINED** without leave to amend.

Declaratory Relief. “Declaratory relief generally operates prospectively to declare future rights, rather than to redress past wrongs. [Citations.] It serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs. In short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them. To qualify for declaratory relief, [a party] would have to demonstrate its action presented two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party's] rights or obligations’ ” *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 909.

Here, Plaintiff’s SAC seeks “a declaration that the sales were void and statutory rights were violated.” This bare recitation without the identification of any actual present controversy, or rights or obligations, is insufficient to put Defendant on notice of what Plaintiff is alleging. Plaintiff has not opposed the motion and there is no showing that there is a reasonable possibility the defect can be cured by amendment. Therefore, the demurrer to the fourth cause of action as to the City is **SUSTAINED** without leave to amend.

The City of Redding’s Demurrer to Plaintiff’s Second Amended Complaint is **SUSTAINED** without leave to amend. The proposed order will be executed.

LVNV FUNDING LLC VS. DYSON

CASE NUMBER: 25CVG-02396

Tentative Ruling on Motion to Set Aside Default: Defendant Megan Dyson moves to set aside default judgment pursuant to CCP 473(b) on the grounds of surprise and excusable neglect. The matter has been properly noticed and is unopposed.

Merits. CCP § 473(b) permits the Court to set aside a default or order entered against an aggrieved party due to mistake, surprise, inadvertence or excusable neglect. The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. “[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default.

Huh v. Wang (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

Here, Defendant has submitted sufficient evidence that her failure to file a responsive pleading was due to surprise or excusable neglect. Plaintiff received timely notice of this Motion and did not file an opposition.

The Motion to Set Aside Default is **GRANTED**. The Default is **VACATED**. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant is ordered to submit a proposed order. Defendant is granted fifteen days leave from today's date to file her responsive pleading. The Proposed Answer is not deemed filed.

MARSHALL VS. EVERLAND GROUP LLC, ET AL.

CASE NUMBER: 26CV-0211292

Tentative Ruling on Motion to Seal: Plaintiff moves for an order sealing all records in this action pursuant to CRC 2.550 and 2.551. Neither Defendant has appeared in this action.

Recognizing the public's First Amendment right of access to documents used at trial or as a basis of adjudication and a presumption of openness of substantive court proceedings in ordinary cases, our Supreme Court in *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, set forth the findings that both the trial and appellate courts must expressly make to seal a record. Courts must find that (1) there is an overriding interest supporting sealing records; (2) there is a substantial probability that the interest will be prejudiced absent sealing; (3) the proposed sealing is narrowly tailored to serve the overriding interest; and (4) there is no less restrictive means of achieving the overriding interest. *Id.* at 1217–1218; *see also* California Rule of Court 2.550(d).

Plaintiff's Declaration establishes that there is an overriding interest supporting sealing records and that there is a substantial probability that the interest will be prejudiced absent sealing. However, the grounds proposed – sealing the entire court record – are not narrowly tailored to serve the overriding interest, and there is a less restrictive means. Specifically, the Court finds that permitting Plaintiff to proceed via pseudonym, and to redact her home address from all public filings, is a more narrowly tailored means of achieving the overriding interest of protecting Plaintiff's privacy and addressing her safety concerns given the facts provided in her Declaration.

Plaintiff did not follow the proper procedure for requesting sealing, and has already publicly filed many documents which include her name and home address. In order to protect this information, the Court will permit the records filed from July 24, 2026 through August 31, 2026 to be filed under seal. However, Plaintiff is ordered to file a public version of the Complaint, identical to the first, with the exception that her name be replaced with "Jane Doe" and her address is redacted. Going forward, all documents filed with the Court must use "Jane Doe" and redact the home address. Aside from those modifications, nothing further is permitted to be filed under seal.

The Motion is **GRANTED** in part. The proposed order Plaintiff filed was improperly attached to her Declaration. Plaintiff is directed to lodge a new proposed order that is consistent with this ruling. The clerk is directed to place under seal all documents filed in this action through today's date. Plaintiff is granted 10 days leave to file a public version of her Complaint as detailed above.